

Instructions for signing your Will

1 Print and review your Will

Print your Will and read through it carefully. Make sure all names, addresses, gifts and other details are correct. If anything needs updating, log in to your Vault at heirloomlife.com.au and make changes before printing.

2 Assemble your Will -- DO NOT INCLUDE THE FUNERAL WISHES PAGE

- Remove this cover sheet and the Funeral Wishes page -- they do not form part of your Will.
- Keep all Will pages together in the correct order.

3 Find two independent adult witnesses

Each witness must:

- be 18 years of age or older;
- not be a beneficiary under this Will; and
- be capable of witnessing the signing and be present to see you sign.

4 Sign your Will in the presence of both witnesses

With both witnesses present and watching at the same time:

- sign in the space at the bottom of each page of the Will; and
- sign and complete the Execution & Attestation section on the last page.

Both witnesses must then sign in the same spaces while you are present. Do not sign any page before both witnesses are present.

5 Store your Will safely

Keep the original signed Will somewhere secure and tell your Executor(s) exactly where it is located. Keep a copy in a separate safe location.

Heirloom recommended practice

As a risk-management practice, Heirloom recommends: (1) neither witness should be the spouse or de facto partner of a beneficiary; (2) use a single blue or black ballpoint pen throughout.

Remote signing?

Signing remotely via audiovisual link? Do not use these instructions -- contact Heirloom through your Vault for the separate AV witnessing procedure.

LAST WILL AND TESTAMENT OF SARAH JANE MITCHELL

I, Sarah Jane Mitchell, of 42 Banksia Drive, Surry Hills, NSW, 2010, being married, declare this to be my Last Will and Testament.

1. REVOCATION

I revoke all former wills, codicils and other testamentary dispositions previously made by me.

2. APPOINTMENT OF EXECUTOR

I appoint Tom Mitchell ("my Executor") to be the executor of this my Will.

If I appoint more than one executor, they are appointed to act jointly. A reference to "my Executor" in this Will means all of them acting together. If any named executor dies, renounces probate, or becomes unable or unwilling to act before obtaining a grant of probate, the surviving or remaining executor or executors shall act alone.

3. SUBSTITUTE EXECUTOR

If Tom Mitchell is unable or unwilling to act, or ceases to act, as executor of this Will, I appoint Claire Patterson as substitute executor in their place.

4. DEBTS AND EXPENSES

My Executor must pay, as soon as reasonably practicable after my death and before making any distribution to beneficiaries, all of my just and lawful debts, my reasonable funeral and burial or cremation expenses, and all costs and expenses of administering my estate (including legal fees and accounting fees).

My Executor may defer payment of any debt that is genuinely disputed until the dispute is finally resolved, and may set aside a reasonable reserve from my estate to meet any contingent liabilities.

Sarah Jane Mitchell Signature

Witness 1 Signature

Witness 2 Signature

5. RESIDUARY ESTATE

Subject to the payment of my debts, funeral expenses and the costs of administering my estate, I give the whole of the rest and residue of my estate to Tom Mitchell (Spouse) absolutely. If Tom Mitchell (Spouse) does not survive me by 30 days, that share passes instead to Tom Mitchell's children, equally.

If all persons otherwise entitled to receive a share of the residue under this clause (including any substitute beneficiaries) fail to survive me, or fail to satisfy any applicable survivorship condition, that share shall pass in accordance with the intestacy provisions of the Succession Act 2006 (NSW) as if I had died without a Will.

6. SURVIVORSHIP AND GIFT RULES

The following rules apply to all gifts made under this Will:

Survivorship

A beneficiary must survive me by at least 30 days to be entitled to receive a gift under this Will, whether the gift is specific, pecuniary or residuary.

Lapse of gifts

If a gift to a named individual lapses because the beneficiary does not survive me by 30 days and no substitute beneficiary has been named for that gift, the lapsed gift shall fall into the residue of my estate.

Class gifts

Sarah Jane Mitchell Signature

Witness 1 Signature

Witness 2 Signature

A gift to a class of persons (for example, "to my children equally") takes effect in favour of all members of the class who survive me by at least 30 days. A child who is conceived before the death of the relevant person and born alive within the usual period of gestation following that death is treated as a member of the class. If a class member does not satisfy the survivorship condition but is survived by one or more descendants who do, those descendants take the class member's share equally per stirpes, subject to the same survivorship condition. If a class member does not satisfy the survivorship condition and leaves no surviving descendant, their share accrues to the surviving members of the class in proportion to their shares.

Uncertain order of death

If it is uncertain whether a beneficiary survived me, that beneficiary shall be presumed to have died before me for the purposes of this Will.

7. EXECUTOR POWERS

In addition to all powers conferred by law, my Executor has the following powers, exercisable at my Executor's absolute discretion:

- (a) Sale -- to sell, call in and convert into money any part of my estate at any time and in any manner my Executor thinks fit, and to grant options over any estate property;
- (b) Postponement -- to postpone the sale or conversion of any estate property for as long as my Executor thinks fit, without liability for any loss caused by the postponement;
- (c) Receipts and compromises -- to collect and receive all amounts due to my estate, and to settle, compromise or refer to arbitration any debt, claim or dispute on such terms as my Executor thinks fit;
- (d) Assents -- to assent to the vesting of, or transfer, any estate property to any beneficiary in or towards satisfaction of their entitlement under this Will;

Sarah Jane Mitchell Signature

Witness 1 Signature

Witness 2 Signature

(e) Professional assistance -- to employ solicitors, accountants, financial advisers and other professionals, and to pay their costs and expenses from my estate.

My Executor may exercise any of these powers without the consent of any beneficiary.

8. APPROPRIATION POWER

My Executor may, in their absolute discretion, appropriate any property (whether real or personal) forming part of my estate towards the satisfaction of any legacy, share or pecuniary entitlement payable to any beneficiary, at such value as my Executor determines to be fair and reasonable at the date of appropriation.

In making an appropriation, my Executor:

- (a) is not required to obtain the prior consent of the beneficiary;
- (b) shall give reasonable notice of the appropriation to the beneficiary or, if the beneficiary is under a legal disability, to their legal representative;
- (c) shall document the appropriation in writing; and
- (d) may take into account any tax consequences for the estate or the beneficiary.

An appropriation duly made under this clause is final and binding on all persons interested in my estate.

This power is in addition to any power of appropriation conferred by the Trustee Act 1925 (NSW) or any other legislation.

9. DELEGATION POWER

Sarah Jane Mitchell Signature

Witness 1 Signature

Witness 2 Signature

My Executor may, in their discretion, delegate any professional, administrative, legal or financial function arising in the administration of my estate to any solicitor, accountant, financial adviser, estate agent or other professional or agent, and may pay the reasonable costs and expenses of such delegation from my estate. A delegation under this clause does not extend to the exercise of any discretion that is personal to my Executor as a matter of law or equity.

A delegation under this clause:

- (a) must be in writing and specify the scope of the delegation;
- (b) does not release my Executor from their general duties as executor, but allows them to rely on the expertise of the delegate in good faith; and
- (c) may be revoked by my Executor at any time.

My Executor is not personally liable for any act or omission of a delegate appointed in good faith under this clause, provided my Executor exercised reasonable care in selecting the delegate.

10. EXECUTOR INDEMNITY

My Executor shall be indemnified out of my estate from and against all actions, proceedings, claims, liabilities, costs and expenses arising from or incidental to the administration of my estate and the exercise of any power or discretion under this Will, except to the extent that the liability arises directly from my Executor's own fraud, wilful default or gross negligence.

My Executor shall not be personally liable for:

- (a) any loss or depreciation in the value of any estate asset (including any investment), unless the loss results from my Executor's fraud, wilful default or gross negligence;
- (b) any act or omission of any agent, solicitor, accountant or other professional appointed in good faith by my Executor; or

Sarah Jane Mitchell Signature

Witness 1 Signature

Witness 2 Signature

(c) any act done or omission made in good faith in reliance on the advice of a barrister, solicitor or other qualified professional.

My Executor's right to indemnity under this clause is in addition to, and does not limit, any right of indemnity conferred by law.

11. DEFINITIONS

In this Will, unless the context otherwise requires:

"my estate" means all real and personal property of which I am the beneficial owner at the date of my death, including property over which I have a general power of appointment;

"my Executor" means the executor or executors for the time being of this Will, including any substituted executor, and includes my Executor acting as trustee where the context so requires;

"child" and "children" include any person recognised as my child under the Status of Children Act 1996 (NSW) and any child adopted by me, but does not include a stepchild unless expressly stated;

"minor" means a person who has not yet attained the age of 18 years;

"vesting age" means the age specified in a trust clause at which a beneficiary becomes absolutely entitled to trust property;

"intestacy rules" means the rules of intestacy as set out in Chapter 4 of the Succession Act 2006 (NSW).

Words importing one gender include all genders. Words importing the singular include the plural and vice versa. A reference to a person includes a corporation.

12. INTERPRETATION

This Will is to be construed in accordance with the law of New South Wales.

Sarah Jane Mitchell Signature

Witness 1 Signature

Witness 2 Signature

If any provision of this Will is held to be void, invalid or unenforceable for any reason, that provision shall be severed from this Will and the remaining provisions shall continue in full force and effect as if this Will had been executed without the severed provision.

A reference to any legislation includes any amendment, re-enactment or replacement of that legislation in force from time to time.

Headings in this Will are for convenience only and do not affect its interpretation.

If there is any uncertainty or ambiguity, this Will must be construed in a manner that gives effect to my apparent intention as gathered from the Will as a whole.

NOTE -- EFFECT OF MARRIAGE AND DIVORCE

Effect of marriage

Under section 12 of the Succession Act 2006 (NSW), a Will is revoked by the testator's marriage, unless the Will was made in contemplation of that marriage. If I marry after signing this Will, this Will will be revoked unless it was made in contemplation of that marriage.

Effect of divorce

Under section 13 of the Succession Act 2006 (NSW), if a marriage is dissolved after this Will is made, any gift to the former spouse and any appointment of the former spouse as executor, trustee or guardian takes effect as if the former spouse had died before me. This applies to legal divorce only -- separation alone does not have this effect.

Sarah Jane Mitchell Signature

Witness 1 Signature

Witness 2 Signature

Execution & Attestation

Sarah Jane Mitchell

Signature

Date

We the undersigned were both present at the same time and saw the willmaker, Sarah Jane Mitchell, sign this Will and then we signed it ourselves in the willmaker's presence:

Witness 1

Witness 2

Witness 1 Signature

Witness 2 Signature

Witness 1 Name (Print Name)

Witness 2 Name (Print Name)

Witness 1 Address

Witness 2 Address

Witness 1 Occupation

Witness 2 Occupation